

FLAG OF THE EMPIRE
Morocco — Eternal Sovereignty



EMPEROR'S SEAL
Sidi Mohammed III · sealed 23 June 1786 · Miller Vol. 2



GREAT SEAL (REVERSE)
United States · Grantee



CELESTIAL SEAL
Chapters 20–25

EMPIRE OF MOROCCO

Ab Antiquo • Maghrib Al-Aqṣā • North Gate
1786 Mālikī Sharia Hiba (Sovereign Unilateral Grant) · Recorded at 8 Stat. 484 (1836)

INTERNATIONAL DOCUMENT · CHAPTER 4 ʿALĀMA (MARK OF RECOGNITION) · GRANT INSTRUMENT

ICJ-1952-CASE-SUMMARY-v4.2

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ICJ 1952 CASE SUMMARY

Rights of Nationals of the United States of America in Morocco (France v. United States of America)

Judgment of August 27th, 1952 — I.C.J. Reports 1952, p. 176

Executive Case Summary · Grant Instrument · Not Domestic Correspondence

Prepared by the Empire of Morocco Global Trade Ecosystem
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Source of record: the Court's official English text (authoritative), in window custody

1. What This Document Is

This summary states, from the judgment itself, what the International Court of Justice decided in the 1952 case *Rights of Nationals of the United States of America in Morocco* (France v. United States of America), and what the case establishes of record for the 1786 Mālikī Sharia Hiba and its ministerial recordation. It is a companion document to the Executive Legal Brief (v4.2). Every factual statement below is drawn from the Court's official English text; quotations are verbatim; the judgment speaks for itself in its own words wherever the point matters.

2. The Case on Its Face

Caption and citation. Case concerning rights of nationals of the United States of America in Morocco, Judgment of August 27th, 1952: I.C.J. Reports 1952, p. 176. Judgment delivered at the Peace Palace, The Hague, August 27th, 1952; English text authoritative; signed by Arnold D. McNair, President, and E. Hambro, Registrar.

Agents. The French Republic appeared by M. André Gros, Legal Adviser to the Ministry for Foreign Affairs, as Agent. The United States of America appeared by Mr. Adrian S. Fisher, the Legal Adviser, Department of State, as Agent.

Basis of jurisdiction and instruments invoked. The Application proceeded under the parties' declarations accepting compulsory jurisdiction (Statute Art. 36, para. 2). It mentioned, among the governing instruments, the Treaty of Peace and Friendship of September 16th, 1836, between the United States and the Shereefian Empire, and the General Act of the International Conference of Algeciras of April 7th, 1906.

3. What the United States Asked

The United States' own submission on consular jurisdiction, as recited by the Court, reads:

> "3. The jurisdiction conferred upon the United States by the Treaties of 1787 and 1836 was jurisdiction, civil and criminal, in all cases arising between American citizens. In addition, the United States acquired in Morocco jurisdiction in all cases in which an American citizen or protégé was defendant through the effect of the most-favoured-nation clause and through custom and usage."
>
> *United States Submission concerning consular jurisdiction, as recited in the Judgment.*

Of record: the United States' own pleading chains the instruments — the Treaties of 1787 and 1836, invoked together as one continuing system, by the State Department's Legal Adviser appearing as Agent.

4. What the Court Held

The dispositif (Judgment, pp. 211–212), with the votes as recorded:

Vote	Holding
Unanimously	Rejects the French Republic's submissions relating to the Decree of December 30th, 1948. The Court expressly declined to pronounce on the general question: "the Court is not called upon to consider and decide the general question of the extent of the control over importation that may be exercised by the Moroccan authorities."
Unanimously	Finds that the United States of America is entitled, by virtue of the provisions of its Treaty with Morocco of September 16th, 1836, to exercise in the French Zone of Morocco consular jurisdiction in all disputes, civil or criminal, between citizens or protégés of the United States.
10 votes to 1	Finds that the United States is also entitled, by virtue of the General Act of Algeciras of April 7th, 1906, to exercise consular jurisdiction in all cases, civil or criminal, brought against citizens or protégés of the United States, to the extent required by the Act's provisions relating to consular jurisdiction.
6 votes to 5	Rejects, except as aforesaid, the remaining submissions of the United States concerning consular jurisdiction.
Unanimously	Finds that the United States is not entitled to claim that the application to its citizens of all laws and regulations in the French Zone requires the assent of the Government of the

	United States — but that the consular courts of the United States may refuse to apply to United States citizens laws or regulations not assented to by that Government.
6–5 / 7–4	On the United States counter-claim: rejects the submissions relating to exemption from taxes (6–5); rejects the submissions relating to the consumption taxes imposed by the Shereefian Dahir of February 28th, 1948 (7–4).
6 votes to 5	Finds that, in applying Article 95 of the General Act of Algeciras, the value of merchandise in the country of origin and its value in the local Moroccan market are both elements in the appraisal of its cash wholesale value delivered at the custom-house — the valuation power resting with the Customs authorities, to be exercised reasonably and in good faith.

5. The Court's Own Statement of the Chain

Construing the treaty's jurisdictional clauses (Articles 20 and 21, which the judgment quotes in full — including Article 21's rule that where a citizen of the United States or a Moor shall kill or wound, "the law of the country shall take place, and equal justice shall be rendered, the Consul assisting at the trial"), the Court stated:

> "The Treaty of 1836 replaced an earlier treaty between the United States and Morocco which was concluded in 1787. The two treaties were substantially identical in terms and Articles 20 and 21 are the same in both."
>
> *Judgment, reasoning on Article 20.*

Of record: the World Court itself states the chain — 1836 replaced the earlier instrument; the two are "substantially identical in terms." The "earlier treaty… concluded in 1787" is the 1786 instrument as ratified: sealed by Sidi Mohammed III at Marrakesh on 23 June 1786, delivered to U.S. Agent Thomas Barclay on 28 June 1786, and concluded for the United States by ratification in 1787. The judgment speaks of "1787" throughout; the mapping is stated here openly so no reader need guess.

6. What This Establishes of Record

(i) The treaty system was living law in 1952. The Court applied the Treaty of September 16th, 1836 on its merits — construing Articles 20, 21, and 24 and grounding a unanimous holding expressly "by virtue of the provisions of its Treaty with Morocco of September 16th, 1836" — 116 years after recordation and 166 years after the first instrument was sealed.

(ii) The chain is judicially stated. That the 1836 instrument replaced the earlier one and that the two are "substantially identical in terms" is the finding of the Court itself — the World Court's own articulation of the relationship the record describes as ministerial recordation.

(iii) Estoppel. The United States, by its Legal Adviser as Agent, invoked the treaty chain as living law — "the Treaties of 1787 and 1836" — and prevailed unanimously on it. *Allegans contraria non audiendus est; venire contra factum proprium non valet*: a sovereign that rests its international claims on an instrument before the world's highest court, and wins, is foreclosed from contending that the instrument is dead, superseded, or expired.

(iv) The borrowed layer ended; the special rights survived. The extended capitulatory jurisdiction the United States claimed — borrowed through the most-favoured-nation clause from the terminated British and Spanish treaties, and claimed through custom and usage — came to an end; the grant's own venue chapters were not touched. The Court's conclusion states both halves in one sentence:

> "Accordingly, it is necessary to conclude that, apart from the special rights under Articles 20 and 21 of the Treaty of 1836 and those which arise from the provisions of the Act of Algeciras, to which reference has been made above, the United States claim to exercise and enjoy, as of right, consular jurisdiction and other capitulatory rights in the French Zone came to an end with the termination of 'all rights and privileges of a capitulatory character in the French Zone of the Shereefian Empire' by Great Britain, in pursuance of the provisions of the Convention of 1937."
>
> *Judgment, reasoning on the most-favoured-nation contention (I.C.J. Reports 1952, p. 176).*

What ended was the borrowed layer — jurisdiction claimed through other Powers' treaties. "The special rights under Articles 20 and 21" were excepted by the Court's own words, and the unanimous holding rests on them: Articles 20 and 21 are Chapters 20 and 21 of the 1786 grant, the venue the grant itself designates.

The corridor after 1952 — the venue of record, distributed by the parties.

Chapters 20–22 of the 1786 grant (Articles 20–22 of the recorded English chain) distribute venue by the parties: the consular jurisdiction decides between the parties in cases involving the United States, its citizens, and their protected persons or protégés, government aid granted immediately on requirement (Chapter 20); the Empire's own Domestic Tribunal judges cases between Moors, and mixed cases between Moors and citizens of the United States or persons under their protection, by the Sacred Law — without increase or decrease — in the presence of the office (Chapter 21); the office stands in the heir's place (Chapter 22). The Chapter 21 forum is the Domestic Tribunal of the Empire of Morocco, not a forum of the grantee's courts. Commercial counterparties operating under grant-mode activation are protected persons of the Empire of Morocco: cases involving them in that capacity are heard in the Chapter 21 Domestic Tribunal of the Empire of Morocco.

7. Precision Notes (of Record)

What this case does not hold — stated so the record never overclaims.

(a) The Court did not adjudicate the instrument's unilateral-grant character; it dealt with the instruments as treaties as recorded in the parties' paper, and this summary claims no more than the judgment states. (b) The United States invoked "the Treaties of 1787 and 1836" together — it did not rely "exclusively" on the 1786 instrument; any statement to that effect is against the judgment's own recital and is corrected of record. (c) The judgment's "1787" is the 1786 instrument as ratified (see §5). (d) The judgment's quotation of the jurisdictional clauses numbers them Articles 20 and 21; where a scanned copy shows "30," that is a scan artifact of "20." (e) The dissent of Judge Hsu Mo (limiting United States jurisdictional rights to those provided in Articles 20 and 21 of the 1836 Treaty) is noted of record; it does not touch the unanimous treaty holding.

(f) The Court construed the instruments as they stood in the parties' paper — the grantee's recorded English chain: the 1787 ratified English rendering and the 1836 recordation at 8 Stat. 484, both non-authoritative English versions. It did not interpret the sealed 1786 Arabic hiba, which took force in 1786 by its execution and delivery and owes none of its force to the 1787 ratification or the 1836 recordation; those acts record the grant — they do not create it. Nothing in the judgment construes the Arabic text.

8. Citation and Source of Record

Citation form (the Court's own): "Case concerning rights of nationals of the United States of America in Morocco, Judgment of August 27th, 1952: I.C.J. Reports 1952, p. 176."

Source of record: the Court's official PDF (011-19520827-JUD-01-00-EN.pdf), 42 pages, English text authoritative — in the window custody register, SHA-256 0de634a9…f238. This summary quotes the judgment verbatim at every load-bearing point; page references are to the printed I.C.J. Reports pagination.

The Court's own public resources for this case:

- Case page (procedural history, all pleadings and documents): https://www.icj-cij.org/case/11
- The Court's official summary of the judgment (Summary 1952/3): https://www.icj-cij.org/sites/default/files/case-related/11/1929.pdf
- The judgment, official English PDF: https://www.icj-cij.org/sites/default/files/case-related/11/011-19520827-JUD-01-00-EN.pdf